

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff's Motion to Compel

TENTATIVE RULING

The Parties are to appear.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS, LLC.
Case No. CU23-03523

Motion for Attorney's Fees;
Motion for Tax Costs

TENTATIVE RULING

Motion to Tax Costs

The matter was on calendar July 7, 2027 and the Parties appeared through Counsel. The Parties submitted on the Court's tentative ruling below.

Defendant's motion to tax costs is denied in part and granted in part.

Items in a memorandum of costs are prima facie evidence of their propriety if they appear on their face to be appropriate charges. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) The burden is on the party seeking to strike or tax costs to show that the items were not reasonable or necessary. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380; *Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774.) A party seeking to strike or tax costs must submit evidence demonstrating that the costs were either unnecessary or unreasonable. (*Jones*, 63 Cal.App.4th at 1266; *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.)

Defendant has not met its burden of demonstrating that the costs claimed for filing fees and service of process fees were not reasonable or necessary. Plaintiff prevailed on both discovery motions for which filing fees are sought and both motions were necessitated by Defendant's attempt to unilaterally narrow the scope of Plaintiff's claims. Service of process fees are explicitly authorized by statute (Code Civ. Proc. § 1033.5(a)(4)) and Defendant presents no evidence to suggest that the fees were not actually incurred or unnecessary to the conduct of the litigation. The Defendant's motion to tax filing fees and service of process fees is denied.

Mediation fees may be awarded in the court's discretion. (*Berkeley Cement Inc. v. Regents of University of California* (2019) 30 Cal.App.5th 1133, 1140. Where Plaintiffs in Song Beverly cases benefit greatly from mediation resulting in a high number of

settlements, the Court finds that it is appropriate for the Parties to equally share the costs of mediation. As such, Defendant's motion to tax the costs of mediation is granted.

Motion for Attorneys' Fees

The matter was on calendar July 7, 2027 and the Parties appeared through Counsel. The Court heard oral arguments. Plaintiff's Counsel argued that her billing records showed the following:

1. A total of 5.8 hours spent on the motion to compel further responses.
2. A total of 3.6 hours spent on the motion to compel the deposition of the PMQ.
3. A total of .6 hours spent on the motion for attorneys fees and motion to tax costs.

The Court has reviewed Plaintiff's billing records in comparison to Defendant's opposition motion at page 7:17-21

The only discrepancies that the Court has identified are as follows:

1. On May 16, 2025, Attorney Figura appeared for .5 hours for the handling attorney.
2. On the motion for attorney fees, there is no billing by Attorney Wood on January 19, 2026.
3. On the motion for attorney fees, there is no billing by Attorney Wood on May 6, 2026.

The Court finds that Attorney Wood billed 6.8 hours for the motion to compel further responses, 7.4 hours for the motion to compel PMQ deposition, and 1.1 hours for the motions for attorney fees and tax costs.

In addition, the Court's previous addition as to the billing of Attorney's Anvar, Walker, Schwartz, Figura, and paralegals was slightly miscalculated.

The Court modifies its previous tentative ruling to as follows:

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the amount of \$19,029.

Specifically, the Court reduces the hourly rates and taxes the number of hours spent as set forth below:

1. Attorney Wood:
 - (a) 3.8 hours from the 6.8 hours to draft a motion to compel further responses for requests for production.

- (b) 4.4 hours from 7.4 hours to draft a motion to compel the deposition of Defendant's PMQ..
- (c) .9 hours auditing billing records in preparation for the motion.

Total hours stricken = 9.1 hours.

The Court awards an additional 2 hours for preparation of reply briefing.

Net reduction in hours = 7.1 hours.

The Court finds a reasonable hourly billing rate for Attorney Wood at \$450 per hour.

Attorney Wood's claimed hours	=	41.7
less hours stricken	=	-7.1

34.6 hours at \$450 = \$15,570

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|-----------------------|------------------------------|
| 2. Attorney Anvar: | .3 hours x \$450 = \$135 |
| 3. Attorney Walker: | 2.7 hours x \$300 = \$810 |
| 4. Attorney Schwartz: | 1.3 hours x \$400 = \$520 |
| 5. Attorney Figura: | .3 hours x 350 = \$105 |
| 6. Paralegal: | 19.1 hours x \$100 = \$1,910 |

TOTAL (2) – (6) = \$3480

TOTAL ATTORNEY FEES: \$19,050

The Court finds that the supplemental declaration submitted by Plaintiff regarding her efforts to find local counsel lacks any specific detail as to her actual efforts in trying to secure local counsel. As such, Plaintiff has not met her burden to show that she is entitled to attorney hourly rates for the Los Angeles area.

The motion is timely. Judgment or dismissal has not been entered in this action and no notice of entry of judgment or dismissal has been served, either by the clerk or by a party. Notice of **conditional** settlement was filed on July 10, 2025, which specified that Plaintiff had to file a request for dismissal by January 10, 2026. No dismissal was filed and no party showed good cause why the case should not be dismissed.

Consequently, the clock to file a motion for attorneys' fees began to run on January 10, 2026. (Cal. Rules of Court, rule 3.1385(c)(2); *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644, 649-650.) The motion was filed on May 14, 2026, well before 180 days from the date of the dismissal.

No multiplier is awarded. The Court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the Court does not find exceptional skill or exceptional results that would warrant a multiplier.
